

IKE SOLUTIONS LLC — LEGAL COMMAND CENTER

Case Ref: IKE-TCA-001-PRES | Companion to: IKE-TCA-001 (Rev. 1) | Matter: Emergency Preservation Demand |
Status: DRAFT — DO NOT SEND | June 06, 2026

EMERGENCY PRESERVATION DEMAND

RE: Isionnah Howard / Isirah Howard (spelling to be confirmed)

Unlawful Detention — Warrantless Arrest — Medical Neglect — Newark Police Department
Companion to: Notice of Claim Under the NJ Tort Claims Act (IKE-TCA-001 Rev. 1)

⚠ EMERGENCY LEGAL NOTICE — IMMEDIATE PRESERVATION REQUIRED

This is a time-sensitive legal preservation demand. The records and materials identified herein are subject to destruction, overwriting, or automatic purging under routine retention schedules. You are hereby placed on formal legal notice that all materials described in this demand must be preserved immediately and indefinitely pending resolution of this matter. Destruction or alteration of any identified record, after receipt of this demand, may constitute spoliation of evidence and give rise to sanctions, adverse inference instructions, and additional legal claims.

I. CLAIMANT

Full Legal Name: [ISIONNAH HOWARD — or — ISIRAH HOWARD: verify exact spelling from arrest record or government-issued ID]

Also Known As: Isionnah Howard / Isirah Howard (alternate spelling — confirm which is official)

Address: [CLAIMANT CURRENT ADDRESS — FILL IN]

Attorney / Representative: [PUBLIC DEFENDER / PRIVATE COUNSEL — or "Pro Se" — call (973) 621-4488]

II. RECIPIENTS — THIS DEMAND IS DIRECTED TO ALL OF THE FOLLOWING

#	Entity	Address	Basis for Inclusion
1	City of Newark Office of Corporation Counsel	920 Broad Street, Room 316 Newark, NJ 07102	Legal representative of City; employer of NPD
2	Newark Police Department Records / Legal Division	31 Green Street Newark, NJ 07102	Arresting and detaining agency; custodian of primary evidence

3	Sgt. Rondus , Newark PD (Individual)	c/o Newark Police Department 31 Green Street, Newark, NJ 07102	Individual officer whose recorded statement describes departmental policy
4	State of NJ Office of the Attorney General	25 Market Street Trenton, NJ 08625	Include if state actors involved
5	Essex County Prosecutor's Office	50 West Market Street Newark, NJ 07102	[Include if county prosecutor involved in arrest, charges, or custody — confirm from paperwork]
6	Essex County Correctional Facility	354 Doremus Avenue Newark, NJ 07105	[Include if custody was transferred to ECCF at any point]
7	[Beth Israel Medical Center] Legal / Risk Management	[201 Lyons Avenue, Newark, NJ 07112]	[Include if Claimant was held at Beth Israel — confirm]
8	[Saint Barnabas Medical Center] Legal / Risk Management	[94 Old Short Hills Road, Livingston, NJ 07039]	[Include if Claimant was held at Saint Barnabas — confirm]

III. INCIDENT SUMMARY AND BASIS FOR THIS DEMAND

On or about **[EXACT ARREST DATE — FILL IN]**, Claimant **[Isionnah/Isirah Howard]** was arrested by officers of the Newark Police Department in the City of Newark, Essex County, New Jersey, without a warrant. Upon information and belief, Claimant — a medically vulnerable individual requiring a tracheostomy suction kit and prescribed respiratory medication — was subsequently detained for approximately six (6) days (approximately 144 hours) under the authority and control of the Newark Police Department, including during a period of hospital custody at **[Newark Beth Israel Medical Center and/or Saint Barnabas Medical Center, to be confirmed]**.

Upon information and belief, Claimant was never brought before a judicial officer for a probable cause determination during this detention, in violation of the constitutional mandate established in *County of Riverside v. McLaughlin*, 500 U.S. 44 (1991). Upon information and belief, a recorded statement of Sgt. Rondus of the Newark Police Department reflects a departmental policy or practice of holding hospitalized detainees in custody without judicial review pending medical clearance. Claimant also asserts that access to her medically necessary tracheostomy suction kit and medication was denied or inadequate during the detention period.

This demand is issued as a companion to the Notice of Claim filed or to be filed pursuant to N.J.S.A. 59:8-1 *et seq.* (IKE-TCA-001 Rev. 1). The materials preserved under this demand will be sought in subsequent civil litigation and/or through formal discovery. Your preservation obligations arise immediately upon receipt of this document.

IV. EVIDENCE PRESERVATION DEMAND — COMPLETE INVENTORY

All of the following categories of records, materials, and electronically stored information (ESI) must be preserved immediately. This list is non-exhaustive; the obligation to preserve extends to all documents and materials reasonably anticipated to be relevant to the claims described herein.

A. Video and Audio Evidence

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| ▶ Body-Worn Camera (BWC) footage | All BWC recordings from all officers present at: the scene of arrest, transport, hospital facility, and any other location where Claimant was held or supervised |
| ▶ Dashcam / patrol vehicle footage | All recordings from any NPD patrol vehicle involved in the arrest, transport, or supervision of Claimant |
| ▶ Jail / holding-cell surveillance footage | All CCTV, surveillance, or security footage from any NPD facility, jail, holding cell, or detention area where Claimant was held |
| ▶ Hospital security footage | All CCTV and security recordings from [Beth Israel and/or Saint Barnabas] covering the period of Claimant's detention, including all areas where Claimant was present and all areas where NPD personnel were stationed |
| ▶ 911 call recordings | All 911 calls and dispatch audio relating to the incident leading to Claimant's arrest |
| ▶ Radio transmissions | All NPD radio communications, including officer-to-officer and officer-to-dispatch transmissions, from the date of arrest through date of Claimant's release |
| ▶ Any other audio/video | Any other audio or video recording — regardless of format or storage medium — depicting the arrest, transport, detention, or medical care of Claimant |

B. Law Enforcement Records

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| ▶ Arrest report(s) | All official arrest reports prepared by any officer relating to Claimant's arrest on or about [ARREST DATE] |
| ▶ | |

Complaint-warrant / complaint-summons	All charging documents, complaint-warrants, and complaint-summonses issued in connection with Claimant's arrest
▶ Probable cause affidavits	All affidavits of probable cause, sworn statements, and supporting documentation submitted in connection with Claimant's arrest and continued detention
▶ CAD (Computer-Aided Dispatch) logs	Complete CAD incident logs, call-for-service records, and dispatch records associated with the incident from [ARREST DATE] through Claimant's release
▶ Booking records	All booking sheets, intake forms, fingerprint records, mugshots, and booking-related documentation for Claimant
▶ Officer notes and field interview cards	All notes, field interview cards, memo book entries, and informal documentation prepared by any officer who had contact with Claimant
▶ Use-of-force reports	Any and all use-of-force reports or incident reports documenting physical contact with Claimant at any stage of the arrest or detention
▶ Supervisor review and approval records	All supervisory reviews, approvals, sign-offs, and chain-of-command documentation relating to Claimant's arrest and continued detention
▶ Photos and still images	All photographs taken of Claimant, the arrest scene, or any evidence in connection with this matter

C. Detention and Custody Records

▶ Hospital guard / security logs	All logs, shift reports, and documentation prepared by any NPD officer or contracted security guard stationed at [Beth Israel and/or Saint Barnabas] during Claimant's hospital detention, including all check-in/check-out, relief, and incident logs
▶ Detention hold logs	All records documenting the duration of Claimant's custodial hold, including any records reflecting the decision to continue detention without judicial probable cause review
▶ Medical clearance records	All records, communications, and documentation related to any "medical clearance" process or determination made concerning Claimant during her detention
▶ Transfer / transport records	All records documenting the transfer or transport of Claimant between any NPD facility, holding cell, hospital, or other location during the detention period
▶ Essex County Correctional Facility records	[Include if ECCF was involved:] All intake, hold, and release records from ECCF relating to Claimant

D. Medical and EMS Records

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| ▶ EMS / ambulance records | All emergency medical services, EMS run reports, and ambulance records related to Claimant's transport to or from any medical facility in connection with this matter |
| ▶ Hospital transport records | All records of transport by NPD, private transport, or hospital transport relating to Claimant during the detention period |
| ▶ Hospital medical records | All medical records, nursing notes, physician orders, treatment records, medication administration records (MAR), and discharge summaries from [Beth Israel and/or Saint Barnabas] covering the entire period of Claimant's admission and detention |
| ▶ Tracheostomy and respiratory care records | All records relating to: Claimant's tracheostomy care needs; requests for or provision of a suction kit; respiratory distress events; and any records reflecting denial, delay, or restriction of respiratory care or medical equipment during detention |
| ▶ Medication administration records | All records reflecting any medication prescribed to or administered to Claimant, and any records reflecting denial of or failure to provide prescribed medication during detention |

E. Policies, Procedures, and Internal Communications

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|---|---|
| ▶ Hospitalized-detainee policies | All Newark PD policies, general orders, directives, standard operating procedures, and guidelines governing the handling, supervision, and custody of detainees who are hospitalized or require medical care |
| ▶ 48-hour / probable cause review policies | All NPD policies, training materials, and directives governing the 48-hour probable cause review requirement for warrantless arrests, including any exceptions or procedures for hospitalized detainees |
| ▶ Communications involving Sgt. Rondus | All emails, text messages, radio communications, written memos, and any other communications to or from Sgt. Rondus — or any other officer or supervisor — discussing: (a) hospitalized detainees; (b) the 48-hour probable cause rule; (c) medical clearance holds; or (d) Claimant specifically |
| ▶ All officer communications re: Claimant | All emails, text messages, radio logs, written notes, and electronic communications to or from any officer, supervisor, or administrator discussing Claimant's arrest, detention, medical condition, or release |
| ▶ Training records | All training records relating to: the 48-hour probable cause rule; care of medically vulnerable detainees; ADA compliance; and supervision of |

hospitalized prisoners — for any officer or supervisor involved in Claimant's arrest or detention

► **Complaint / discipline records**

All prior complaints, disciplinary records, or internal affairs investigations relating to Sgt. Rondus or any officer involved in Claimant's arrest or detention — to the extent permitted by applicable law and subject to discovery

V. LEGAL BASIS FOR THIS DEMAND

This preservation demand is issued pursuant to the common law duty to preserve evidence when litigation is reasonably anticipated, as recognized under New Jersey and federal law. See *Zubulake v. UBS Warburg LLC*, 220 F.R.D. 212 (S.D.N.Y. 2003) and progeny; *Mosaid Technologies Inc. v. Samsung Electronics Co.*, 348 F. Supp. 2d 332 (D.N.J. 2004). The obligation to preserve is triggered not upon the filing of a lawsuit, but at the moment litigation is reasonably anticipated — which, as of the date of this demand, it plainly is.

Additional preservation obligations arise under: the New Jersey Tort Claims Act (N.J.S.A. 59:8-1 *et seq.*); applicable state and municipal records retention laws; *Mahon v. U.S. Highway Freight*, 2009 WL 3754065 (D.N.J. 2009); and the inherent authority of state and federal courts to sanction parties for spoliation of evidence.

VI. SPOILIATION WARNING

► **FORMAL SPOILIATION WARNING — READ CAREFULLY**

If any record, material, or electronically stored information identified in this demand is destroyed, altered, overwritten, corrupted, lost, or rendered inaccessible — whether intentionally, negligently, or pursuant to any routine retention policy — after receipt of this demand, Claimant will seek all available remedies, including:

- An **adverse inference instruction** directing the jury to presume that the destroyed evidence was unfavorable to the responsible party
- **Dismissal of defenses** or entry of default judgment, where appropriate
- **Monetary sanctions** against the responsible party and/or its counsel
- **Additional civil claims** for intentional spoliation of evidence
- **Criminal referral** where willful destruction of evidence constitutes obstruction of justice or tampering with evidence under applicable law

You are hereby on notice. Purging or overwriting records pursuant to any automatic schedule does not excuse the preservation obligation that attaches upon receipt of this demand.

VII. ACKNOWLEDGMENT AND RESPONSE REQUESTED

Response Requested Within 10 Days of Receipt

Claimant requests that each recipient confirm in writing within ten (10) days of receipt that:

- All records identified in this demand have been placed on a litigation hold
- Routine destruction of any identified records has been suspended
- The identity of each person or unit responsible for preserving each category of records has been identified and notified
- Any records that have already been destroyed or cannot be located are identified as such in the written response

Written response should be directed to: **[CLAIMANT ADDRESS — or attorney's address once counsel is confirmed]**

VIII. SIGNATURE OF DEMANDING PARTY

This Emergency Preservation Demand is issued in good faith and in anticipation of civil litigation arising from the matters described herein. All rights are reserved.

Date Issued:

Signature of Claimant — **[Isionnah/Isirah Howard — verify spelling]**

Signature of Attorney or Authorized Representative (if applicable)

Print Name:

NJ Bar No.:

Firm / Address:

Phone / Email:

IX. SERVICE INSTRUCTIONS — CERTIFIED MAIL REQUIRED

Serve via Certified Mail, Return Receipt Requested (CMRRR) — simultaneously to all applicable recipients listed in Section II above. Retain all tracking numbers and signed green card receipts. Send on the

same date as the NJ Tort Claims Act Notice (IKE-TCA-001 Rev. 1) if possible — same mailing run. Date of USPS acceptance is operative date of service.

Note: Also consider sending a copy directly to the hospital's Risk Management / Legal Department via CMRRR, separately from law enforcement service, to ensure hospital-held records are placed on hold.

DRAFT — AWAITING TRUSTEE APPROVAL — DO NOT SEND | Document ID: IKE-TCA-001-PRES | Companion to: IKE-TCA-001 (Rev. 1) | Prepared by IKE Solutions Legal Command Center | June 06, 2026

This document is a legal draft for review purposes only. It does not constitute legal advice. Consult a licensed New Jersey attorney before sending. Nothing in this document shall be filed, served, mailed, emailed, or transmitted without the explicit approval of Isiah Tarik Howard, Trustee.

DRAFT — DO NOT SEND